Children and the Internet: Evaluating the Legal Framework for Protection Against Online Predators and Digital Exploitation in India

Author- Asmita Mallick

Abstract
Indian youngsters are being exposed to the flurry of opportunities and risks in the digital world as a result of the rapid globalization of the economy. The internet offers tremendous educational, social, and recreational benefits, but it also gives predators, cyberbullies, and virtual abusers a place to start their operations. In order to protect children from these kinds of online dangers, India's current legislative and policy framework is evaluated critically in this article. The current paper highlights legal strengths and important gaps based on the integration of national laws such as the Protection of Children from Sexual Offences (POCSO) Act, 2012, the Information Technology Act, 2000, and recommendations from the National Commission for Protection of Child Rights (NCPCR). In order to emphasize the necessity of change, especially in the areas of intermediary accountability, technical enforcement, and digital literacy, it also draws on empirical data and global best practices.
Keywords:
Online Exploitation, POCSO Act, 2012, Cybercrime Laws, Online Grooming, Child Safety, Digital Abuse.

"Childhood should be carefree, playing in the sun; not living a nightmare in the darkness of the soul."
…Dave Pelzer

Introduction:
The advent of the digital age has completely altered how Indian children interact with the outside world. Cheap cell phones are becoming more widely available, internet access is being made ubiquitous through programs like Digital India, and people are becoming more reliant on digital platforms for entertainment and education, especially during and after the COVID-19 pandemic. While learning, sociability, creativity, and expression have all been made possible by the digital revolution, children are also now at risk from significant and frequently undetectable risks. The same technology that allows kids to explore the world also puts them at danger for identity theft, cyberbullying, sextortion, cyber grooming, digital blackmail, and access to inappropriate content. Although the

internet is sometimes viewed as a tool for emancipation and a fair playing field, it can also be a hunting ground for online predators who want to take advantage of children's vulnerability and developmental stages as well as the degree of privacy that comes with using the internet.

The effectiveness and sufficiency of India's current institutional and legal framework for protecting children from online predators and digital abuse are evaluated critically in this article. The research will aim to identify the main gaps and suggest specific, kid-friendly reforms based on scholarly research, real-world case studies, comparative international education, and statutory review. It promotes a paradigm change away from fragmented responses and toward a logical, technologically savvy legislative structure that balances the protection of children's rights with their independence as well as access to the internet.

Legal Definition of "Child" Under Various Frameworks:

The term "child" has diverse meanings in various legal systems, each of which is adapted to the unique rights and protections of children worldwide. Here are some important legal definitions of "child" in India and according to global agreements:

1. **United Nations Convention on the Rights of the Child (UNCRC), Article 1[1]:**

UNCRC is one of the treaties that becomes part of the international law is The United Nations Convention on the Rights of the Child. It provisions all the rights of the children irrespective of disabilities, discrimination of any kind, or even the religion one may practice. The first article states, "Every human being below the age of 18 years unless under the law applicable to the child, majority is reached earlier." While ratifying the UNCRC, India undertook responsibilities to align its provisions with international standards for the welfare and protection of children.

2. **Bhartiya Nyaya Sanhita (BNS), 2023, Section 2(3):**

The definition of children, under the age of 18 years, as put in advance in Chapter V, section 2(3) of the Bhartiya Nyaya Sanhita (BNS), 2023, accords with international treaties on the children's rights. This definition aims at providing more severe punishments for the assaults on youngsters.

3. **POCSO Protection of Children from Sexual Offences (POCSO) Act, 2012:**

[1] UNGA, 'Convention on the Rights of the Child' (20 November 1989) UNGA Res 44/25, entered into force 2 September 1990 https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-rightschild accessed 1 May 2025.

It safeguards 'children' against sexual abuse and exploitation and sexual offenses, and provides protective 'gender-neutral' cover to all individuals under the age of 18, which also has serious consequences for child safety online. Its protective focus may primarily be upon offline offenses; the Act also has important ramifications for the safety of children online.

4. **Juvenile Justice (Care and Protection of Children's Care) Act (JJ Act), 2015:**

One of the various methods in Indian laws related to children and courts, one of the most important is the Juvenile Justice (Care and Protection of Children's Care) Act, 2015. The law defines a child as a person who has not achieved the age of eighteen years. This law is designed to deal with the dislocation and protective issues of adolescents in addition to the wards of the state. Under Section 2 (14), the word "needs child care and safety" includes a child who is exposed to the risk of abuse or exploitation. Section 74 of this Act saves children victims of sharing their paintings or videos that reveal their identity to the world. For the purpose of juvenile justice, this act expands its reach to help children from predators and digital abuse.

5. **Immoral Traffic (Prevention) Act, 1956, Section 2 (aa):**

It defines and recognizes a child and a minor differently for purposes of human trafficking and sexual exploitation. It defines a minor to be a person under the age of 16. The primary focus of the Act may be on the trafficking of children, but its provisions also can be applied to safety of children online, especially in the context of digital exploitation and grooming.

I. Digital child exploitation:

In today's world online child sexual exploitation includes various criminal activities and abusive behaviours. They are mentioned below-

- **Child Sexual Abuse Material (CSAM)-** A number of national and international regulations make it illegal to consume, possess, or distribute CSAM.
- **Coercion and Blackmail-** using coercion, threats, or extortion to coerce a youngster into engaging in sexual activity.

- **Sexually Explicit Chats with Minors-** It is exploitation to have sexually suggestive discussions with youngsters on the internet.
- **Non-Consensual Distribution of Private Content ("Revenge Porn")[2]-** It is illegal to post or distribute a child's private photos or videos without that child's permission.
- **Use of Children for Pornographic Content-** It is Used for utilizing children for sexual enjoyment through pornographic media in print, electronic, television, and the internet.
- **Exploitation in Online Gaming-** Children who play video games online are susceptible to being groomed, cyberbullied, and exposed to improper content- all of which are frequently made possible by anonymous platforms.
- **Online Child Trafficking -** The illicit recruitment, transportation, and exploitation of minors for sexual or labour-related objectives using digital platforms often social media and chat services is known as online child trafficking.

Legal landscape in India

The Information Technology (IT) Act was inadequate to combat an increase in cyber-crimes against minors as the Internet era gained momentum. To strengthen the legal framework against child sexual abuse and exploitation, children's safety (POCSO) Act, 2012 was implemented. Legislative bodies eventually realized, yet, some POCSO, 2012 ban was insufficient to prevent the increasing number of examples of child sexual abuse, online advice and digital smuggling.

A. Information Technology Act, 2000

Information Technology Act, 2000, India's main cyber law, makes many internets crimes illegal. It is illegal to publish or distribute such material that shows the youth engaged in sexually clear behaviour under Section 67B. However, the detectors say the enforcement is uneven, and the law is not enough[3].

B. Protection of Children from Sexual Offences (POCSO) Act, 2012

The POCSO Act is India's cornerstone legislation on child sexual abuse, with provisions that implicitly extend to online spaces. Amendments in 2019 enhanced punishments for digital offenses, yet ambiguities remain in defining the digital boundaries of "sexual harassment" and "grooming".

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[2] https://www.legalserviceindia.com/legal/article-19738-protecting-childhood-legal-safeguards-against-onlinechild-exploitation.html

[3] [2024 SCC Online SC 2611]

C. National Commission for Protection of Child Rights (NCPCR)

Under the Commission for Protection of Child Rights Act, 20057, the Indian government shaped the National Commission for Protection of Child Rights (NCPCR), a statutory entity. Its predominant duty is to make certain that the laws, policies, projects, and administrative approaches all aid the UN Convention at the Rights of the Child and the Indian Constitution's vision of children's rights. In 1992, India have become a member to the Convention on the Rights of the Child (CRC), an international agreement that requires signatory states to take each suitable step to guard the rights of children indexed within the Protocol.

II. Emerging Threats and Real-World Cases:

Real-life incidents, such predators taking advantage of online gaming platforms or luring kids with phony social media profiles, have becoming more frequent. Reports point to instances in which predators coerced children into meeting offline or sharing explicit material. In India, where kids spend more time online, online grooming has increased, particularly after the pandemic.

III. Role of Technology and Intermediary Liability

India's Intermediary Guidelines and Digital Media Ethics Code, 2021, imposes legal duties on intermediaries such as social media platforms and messaging apps; nevertheless, enforcement of these laws is maximum. Platforms responsibility to detect and report exploitation content is yet unclear.

IV. International Comparisons and Global Standards

In response to the escalating threats posed through cybercrimes in opposition to youngsters, the United Nations exceeded the Global Cyber Crime Treaty12 on August thirteen, 2024. This treaty pursuits to offer a comprehensive international criminal framework for preventing cybercrimes, including infant exploitation, net trafficking, and virtual abuse. Challenges are speedy converting and law reform and global co-operation are needed to be short sufficient to save you the exploitation of youngsters and violations in their fundamental rights at the same time as in the war in opposition to cybercrime.

V. Landmark decisions:

1. **Gulafsa Begum v. State of UP (2021)[4]**

On December 3, 2021, in the case of Gulafsa Begum v. State of U P. that the victim is not obliged to submit for a DNA test. The case concerned a criminal revision petition challenging the judgment and order of June 25, 2021, by the Additional Sessions Judge at Sultanpur.

[4] Criminal Revision No. 477 of 2021, Allahabad High Court, Decided on December 3, 2021 - https://www.casemine.com/judgement/in/61b1c57842c96ee044e03f64

2. Just Rights for Children Alliance v. S. Harish (2024)[5]

According to the Supreme Court, Section 67B makes it illegal to view child pornography. However, unless intent to access is proven by prosecution records, downloading such content by accident is not illegal.

3. Alakh Alok Shrivastava v. Union of India (2018)[6]

A writ petition regarding the Protection of Children from Sexual Offenses (POCSO) Act, 2012, was submitted to the Supreme Court of India in the count of Alakh Alok Srivastava v. Union of India (2018). She additionally requested the courtroom to order that the path be fast-tracked and monitored with the aid of Pocso.

4. Nupur Ghatge v. State of Madhya Pradesh (2020)[7]

In Nupur Ghatge v. State of Madhya Pradesh case, the Gwalior bench of Madhya Pradesh high court ruled that posting child pornographic material on social websites was prohibited per section 67B of the IT Act.

VI. Legal Gaps and Challenges

A. Lack of Definition and Recognition of Online Grooming

There is no independent definition of "online grooming" in Indian law yet. "While POCSO rightfully criminalizes sexual intent, it does not adequately address the psychological co-option aspect, which may hamper prevention and prosecution efforts[8]".

B. Poor Mediator Accountability

Despite the 2021 Rules, major tech platforms continue to evade proactive content monitoring responsibilities under the guise of "privacy" and "freedom of

[5] [2024 SCC Online SC 2611]
[6] Writ Petition (C) No.76 of 2018, Supreme Court of India, Decided on May 1, 2018
[7] [(MCRC No. 52596 of 2020)]
[8] Dr Deepika Rani, 'Protecting Children from Online Grooming in India's Increasingly Digital Post-Covid-19 Landscape: Leveraging Technological Solutions and AI-Powered Tools' (2024) 12(3) *International Journal of Innovative Research in Computer Science & Technology* 38-44.

expression." There is limited compliance with notice-and-takedown procedures, and reports of abuse often go unanswered[9].

VII. Technological Tools and the Role of Artificial Intelligence

AI can identify patterns of behaviour; track children's pictures use and automatically remove inappropriate content. India should harness AI-enabled identification tools and work closely with international cybersecurity intelligence partners. AI has already been used globally to detect online grooming. This is a tool that the Indian government could easily implement to close some of its enforcement gaps[10].

VIII. Policy Recommendations

1. Enact a Specific Online Child Protection Law

India's cutting-edge method to infant on line safety is piecemeal, with provisions scattered throughout the IT Act, POCSO Act, and middleman tips. A comprehensive, standalone law is crucial to cope with the particular challenges posed through the virtual environment. Such a regulation ought to:

- Define offenses like on-line grooming, cyberstalking of minors, identity robbery related to children, and virtual enticement.
- Include specific strategies for investigation and prosecution of online sexual offenses against children, together with pass-border offenses.
- Mandate swift content material removal mechanisms for child sexual abuse fabric (CSAM) with penal effects for postpone or non-compliance.
- Provide for victim rehabilitation offerings, digital counselling, and safety of infant witnesses all through online trials.

2. Institutionalize a National Child Cyber Safety Authority (NCCSA)

There is an urgent need to establish a regulatory body with jurisdiction over the issue of child safety and protection. The NCCSA should act as a nodal agency coordinating with:

- Cybercrime investigation units for intelligence and enforcement.
- Educational systems need to co-opt child online safety programs into the school curriculum.

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[9] G Aswathy Prakash, Asha Sundaram and B Sreeya, 'Online Exploitation of Children and the Role of
Intermediaries: An Indian Legislative and Policy Perspective' (2022) 36(3) *International Review of Law, Computers & Technology* 431-452

[10] Dr Deepika Rani, 'Protecting Children from Online Grooming in India's Increasingly Digital Post-Covid-19 Landscape: Leveraging Technological Solutions and AI-Powered Tools' (2024) 12(3) *International Journal of Innovative Research in Computer Science & Technology* 38-44.

- Technology companies need to secure platforms and disseminate threat alerts.

3. Make Child-Friendly Design a Standard

- AI-based moderation tool to detect grooming, sextortion and cyberbullying (Indian market).
- Provide rehabilitation programs for victim children, digital counselling, and protect the involved children in the online courts.

4. Enhance Digital Literacy

Digital literacy is the first line of defence in child safety. Efforts must go beyond infrastructure deployment and include behavioural education on digital risks. Key steps include:

- Launching a National Digital Safety Curriculum for schoolchildren covering privacy, fake profiles, cyberbullying, and grooming awareness.
- Implementing a national digital protection curriculum in all faculties to train children on components such as privateness, faux profiles, bullying, and grooming.
- Training teachers to identify the warning indicators of abuse and act as digital safety mentors.
- Conduct nationwide campaigns (radio, TV, social media) targeting parents and guardians on how to supervise their children's mobile devices access.
- Work with NGOs to target the low connectivity and most vulnerable communities in countries where formal learning is poor.

6. Ensure Tech Platform Accountability

India's intermediary liability regime (the IT Rules, 2021) needs to be significantly tightened for child safety. Proposed changes include:

- Setting a mandatory deadline to remove CSAM content from platforms upon users' or authorities' reports (e.g., within 24 hours).
- Ensuring that the transparency reports by social media companies concerning actions taken on child safety complaints are auditable.

Conclusion

To prevent this threat, India needs to revise its policy on three levels:

1. **Law Reform:** Formulate a law against online child sexual exploitation and grooming based on the perpetrators' psychology and behaviour.
2. **Institutional Capacity:** Establish a specialized "Cyber Cell" within the government to specifically address issues related to children's online safety.

3. **Societal Empowerment**: Foster a country wide digital literacy campaign that treats cyber hygiene as fundamental as bodily hygiene- beginning from early school education to public service messaging for parents and communities.

In the conclusion, the journey closer to a digitally stable early life in India needs a paradigm shift- from reactive to proactive, from punitive to preventive, and from fragmented to incorporated coverage-making. Protecting kids within the virtual age is not simply a criminal necessity- it is a societal responsibility that defines the ethical spine of any contemporary country.

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